

Proclamation No. 1102, s. 1973
Announcing the Ratification by the Filipino People of the Constitution
Proposed by the 1971 Constitutional Convention

Ferdinand Marcos

The document is accessible at Malacanang Palace. *Proclamation No. 1102, s. 1973: Announcing the Ratification by the Filipino People of the Constitution Proposed by the 1971 Constitutional Convention*. Manila: Official Gazette of the Philippines, 1973. <https://tinyurl.com/y34cyb6b>.

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

By virtue of Proclamation No. 1102, s. 1973 on January 17, 1973, President Marcos, heeding the recommendation of the Katipunan ng mga Barangay, officially announced the effectivity of the Constitution drafted by the 1971 Constitutional Convention as it was ratified by over ninety-five (95) of the members of the barangays' Citizens' Assemblies, which were created in compliance with Presidential Decree No. 86, s. 1972. The Citizens' Assemblies were formed to expand the base of citizen participation in democratic governance.

WHEREAS, the Constitution proposed by the nineteen hundred seventy-one Constitutional Convention is subject to ratification by the Filipino people;

WHEREAS, Citizens Assemblies were created in barrios in municipalities and in districts/wards in chartered cities pursuant to Presidential Decree No. 86, dated December 31, 1972, composed of all persons who are residents of the barrio, district or ward for at least six months, fifteen years of age or over, citizens of the Philippines and who are registered in the list of Citizen Assembly members kept by the barrio district or ward secretary;

WHEREAS, the said Citizens Assemblies were established precisely to broaden the base of citizen participation in the democratic process and to afford ample opportunity for the citizenry

to express their views on important national issues;

442

WHEREAS, responding to the clamor of the people and pursuant to Presidential Decree No. 86-A, dated January 5, 1973, the following questions were posed before the Citizens' Assemblies or Barangays: Do you approve of the New Constitution? Do you still want a plebiscite to be called to ratify the new Constitution?

WHEREAS, fourteen million nine hundred seventy-six thousand five hundred sixty-one (14,976,561) members of all the Barangays (Citizens Assemblies) voted for the adoption of the proposed Constitution, as against seven hundred forty-three thousand eight hundred sixty-nine (743,869) who voted for its rejection; while on the question as to whether or not the people would still like a plebiscite to be called to ratify the new Constitution, fourteen million two hundred ninety-eight thousand eight hundred fourteen (14,298,814) answered that there was no need for a plebiscite and that the vote of the Barangays (Citizens Assemblies) should be considered as a vote in a plebiscite;

WHEREAS, since the referendum results show that more than ninety-five (95) per cent of the members of the Barangays (Citizens Assemblies) are in favor of the new Constitution, the Katipunan ng Mga Barangay has strongly recommended that the new Constitution should already be deemed ratified by the Filipino people;

NOW, THEREFORE, I, FERDINAND E. MARCOS, President of the Philippines, by virtue of the powers in me vested by the Constitution, do hereby certify and proclaim that the Constitution proposed by the nineteen hundred and seventy-one (1971) Constitutional Convention has been ratified by an overwhelming majority of all of the votes cast by the members of all the Barangays (Citizens Assemblies) throughout the Philippines, and has thereby come into effect.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the Republic of the Philippines to be affixed.

Done in the City of Manila, this 17th day of January, in the year of Our Lord, nineteen hundred and seventy-three.

(SGD.) FERDINAND E. MARCOS

President

Republic of the Philippines

By the President:

(SGD.) ALEJANDRO MELCHOR

Executive Secretary

Malacanang Palace. *Proclamation No. 1102, s. 1973: Announcing the Ratification by the Filipino People*

of the Constitution Proposed by the 1971 Constitutional Convention. Manila: Official Gazette of the Philippines, 1973. <https://tinyurl.com/y34cyb6b>.

Proclamation No. 2045, s. 1981

Proclaiming the Termination of the State of Martial Law throughout the Philippines Ferdinand Marcos

The proclamation is accessible at Malacañang Palace. *Proclamation No. 2045, s. 1981: Proclaiming the Termination of the State of Martial Law throughout the Philippines* by Ferdinand Marcos. Manila: Official Gazette of the Philippines, 1981. <https://www.officialgazette.gov.ph/1981/01/17/proclamation-no-2045-s-1981/>.

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

Pursuant to Proclamation No. 2045, s. 1981, President Marcos formally announced the end of the eight years of martial law in the country, which declared on September 21, 1972 by virtue of Proclamation No. 1081, on January 17, 1981. In lifting the martial law, the president cited the government's success in reestablishing order, curbing "left-rightist rebellions" and subduing the secessionist movement. Marcos likewise took pride in being able to institute wide-ranging reforms under the Democratic Revolution. Despite the lifting of the martial law, he made it clear that the Armed Forces of the Philippines would continue to prevent or suppress lawless violence, insurrection, rebellion and subversion" and the suspension of the privilege of the writ of habeas corpus would remain in force "in the two autonomous regions in Mindanao" and would be enforced in "all other places" with regard to "persons at present detained as well as others who may hereafter be similarly detained for the crimes of insurrection or rebellion, subversion, conspiracy or proposal to commit such crimes."

WHEREAS, by virtue of the powers granted under Article VII, Section 10, Paragraph 2 of the 1935 Constitution, the President of the Philippines promulgated Proclamations Nos. 1081 on September 21, 1972 and 1104 on January 17, 1973 placing the entire Philippines under Martial Law in order to protect the integrity of the Republic from lawless elements then conspiring to seize political and state power by means of anarchy, rebellion and secession;

445

WHEREAS, the ultimate objective of Proclamations Nos. 1081 and 1104, beyond repelling the threat to the government, was to remove the causes of popular grievance which had accumulated through decades of neglect and oppression and given rise to discontent, chaos and violence, and thereby reestablish democracy, restore individual rights, and promote the welfare of the Filipino people;

WHEREAS, on submission of the government itself, the constitutional validity of Proclamations Nos. 1081 and 1104 and acts done pursuant to them have been litigated before the Supreme Court which subsequently affirmed their validity, thereby strengthening the tradition that ours is a government of laws and not of men and that even the government is subject to law;

WHEREAS, anarchy has been successfully checked;

WHEREAS, the leftist-rightist rebellion has been substantially contained, its ranks reduced to disorganized bands alienated from the people;

WHEREAS, the secessionist movement has been effectively overcome with the signing of the Tripoli Agreement on December 23, 1976, the signing of cease-fire agreements in Tripoli on December 23, 1976 and in Zamboanga City on January 29, 1977, and the establishment of autonomous governments in Region IX and Region XII, and on account of all these manifestations of goodwill and concord more than 37,000 former secessionist rebels have reciprocated the sincerity of the martial law regime by supporting the reforms of the New Society and participating constructively in political, social, economic, cultural and spiritual development;

WHEREAS, in pursuit of its long-range goal of recovering the substance of democracy, restoring individual rights and promoting the welfare of the Filipino people, the government has successfully waged a Democratic Revolution founded upon a series of reforms, as follows:

1. Land reform, which has liberated 523,153 farmers from the shackles of tenancy and transformed land ownership from a system of exploitation to a self-reliant and creative act, so that the income of the Filipino farmer has increased twofold in some areas, threefold in others, a condition altogether different from the times when land reform legislation repeatedly failed because Congress was controlled by landowners, giving rise to the Hukbalahap uprising.

The land reform decree in one sweep eradicated the centuries-old condition of the typical Filipino farmer which virtually imprisoned him in indebtedness handed down from one

generation to another and converted him from a mendicant to a self-assured and dignified individual. Part of this new life granted to the farmer was the capability granted to him for self reliance, liberating him from the tentacles of usurious landlords by limiting payments for the land allotted him by the latter to a part of the harvest. The New Society also extended the newly liberated farmer credit without collateral and gave him irrigation, farm-to-market roads, the assistance of technologists, subsidized fertilizer and pesticides, a guaranteed and established

446

minimum level of price for rice and other cereals under the National Grains Authority (now the National Food Authority), a policy responsive to changes in the economic situation.

2. Political reform, including a reorganization of the government, which has retrieved from the ancient past the Filipino concept of the barangay as the basic unit of community development and political action; set up the Tanodbayan and the Sandiganbayan as the people's instrument against corruption in government reorganized the prosecution service, and, through the Batasang Pambansa, is now in the process of reorganizing the judiciary; elevated the quality of the civil service through professionalization, training and better incentives to excellence in the form of increased salaries and improved working conditions.

Reflecting the spirit of reform was the passage of the new Constitution by a convention that opened in 1970, its ratification at barangay assemblies on January 17, 1973, its weathering of close scrutiny by the Supreme Court which declared in its decision of *Javellana vs. The Executive Secretary* (50 SCRA 141) that "there is no further judicial obstacle to the new Constitution being considered in force and effect," and its further formal ratification on July 27, 1973, by free and secret ballot in a plebiscite conducted under the control and supervision of the Commission on Elections.

The Constitution, although passed and ratified after the promulgation of martial law, contained principles of government which were conceived and approved by the constitutional convention before Proclamation No. 1081 was issued. Among these basic tenets which preceded the declaration of martial law was the parliamentary system into whose full implementation the government is now moving.

The new Constitution authenticated several expressions of popular will which followed its ratification, including referenda and plebiscites (July 27, 1973; February 27, 1975; October 16, 1976; December 17, 1977) conducted to determine whether the people wanted the incumbent President to continue in his position, and whether or not the incumbent President should, in accordance with Amendment No. 3 of the Constitution, also exercise the powers of the Prime Minister after the organization of the Interim Batasang Pambansa (National Assembly) and successive elections, starting with the election of members of the interim Batasang Pambansa on April 7, 1978, followed by the election of the members of the Sangguniang Pampook of the autonomous regions of Mindanao, Region IX and Region XII, and finally the elections of local officials on January 30, 1980.

A sustained program of action against corruption, started even before the Tanodbayan and the

Sandiganbayan were organized, has enabled the national leadership to rid the government of undesirable elements. The present administration is the first one in which an anti-graft campaign has been successful; cases have been filed and officials punished. In the military 8,884 — more than 9,000 including members of the Integrated National Police — have been punished for abuses they had committed. The Tanodbayan, in its zeal to perform its responsibility, even initiates investigations of officials and employees on the basis of mere anonymous complaints.

447

Under the martial law government legitimate political dissent received full protection, although constant vigilance has been exercised to protect the government and society from the inroads of subversion and violence. The care and attention given by the government to distinguish between legitimate political dissent and subversion or violence has promoted greater citizen awareness of the contribution they are expected to make to the peace, security and stability of the nation.

A widely accepted innovation in democratic government has been the election of representatives of the youth, labor and agricultural sectors in the Batasang Pambansa and in the Sanggunian, a system which permits three important segments of society to participate directly in legislation.

3. Labor reform, which produced a new Labor Code, introduced tripartite conferences of labor, management and government as a means of promoting industrial peace, and enabled the government to maintain the unemployment rate at 4.5 per cent, considerably lower than that of many other countries, including highly developed ones.

4. Economic reform, which has enabled the nation to maintain the momentum of growth at an average of 6 to 7 per cent from 1970 to 1980, a period wracked by repeated crises mostly generated by external factors, in contrast to the comparatively placid and prosperous decade of the '60s when the growth rate was below 5 per cent; converted the Philippines from a rice deficient country (its last importation, in 1974, was \$500 million) to a rice-exporting country; enabled the nation to diversify its exports, from the four traditional items (consisting of sugar, coconut products, wood products and mineral ores which together comprised 80 per cent of our exports before 1966 and now constitute only 45 per cent) to a broad new range of products, including electronic items, semi-processed food and raw materials, garments, and cottage industry products; developed an accelerated energy program whose scope and robustness have been acknowledged by most member-countries of the United Nations as well as by recognized experts and scientists; undertaken a vigorous electrification program which has increased the number of rural households with access to electricity from 76,000 in 1972 to more than a million in 1980; in sum, produced these economic indicators —

a) The Gross National Product increased from P55,526,000 in 1972 to P192,911,000 in 1979 at constant prices or P269,781,000 at current prices;

b) The budget has increased from P5 billion in 1972 to P55 billion in 1981, governmental capital expenditures from a mere P0.9 billion in 1972 to P14.9 billion in 1979;

c) Collections of government from taxes have increased from P5.1 billion in 1972 to

P36.6 billion in 1980;

d) Per capita income has more than trebled from US\$214 in 1972 to US\$755 in 1979 — in 1972 the percentage of Filipino families with a family income of P1999 and below was 24.3 per cent while in 1979 it was reduced to 11.2 per cent, and those with family incomes of P30,000 or over increased from 5.0 per cent in 1972 to 12.8 per cent in 1979;

448

e) Total exports increased from US\$1.106 billion in 1972 to US\$5.935 billion in 1980;

f) Showing the stability of our currency, notwithstanding the fluctuations of the dollar, the rate of exchange of the peso to the US dollar has barely moved from the 1972 rate of 6.6710 to the 1979 rate of 7.3775;

g) Savings and time deposits increased from P5.402 billion in 1972 to P49.116 billion as of September 1980;

h) Effective minimum wage increased from P4.75 daily in 1972 to P23.30 – P24.70 in 1980;

i) Gross domestic investment increased from P11,573 million in 1972 to P78,198 million in 1980, while gross national savings increased from P11,679 million in 1972 to P62,395 million in 1980;

j) The debt service ratio has been reduced from 20 per cent of foreign exchange earnings in 1972 to 18.7 per cent of foreign exchange earnings in 1980;

k) The international reserves were increased from US\$282 million in 1972 to US\$3.1 billion in 1980;

l) The inflation rate has been contained at less than 15 per cent, which is very much below the inflation rates of most countries, which range from 20 per cent to 25 per cent;

The economy gained incalculable benefits from the road building program, which has built 65,972 kilometers of highways from 1969 to 1980, compared to the 84,722 kilometers built between 1900 and 1965, as well as from the accelerated program of irrigation, which has produced irrigation systems for more than 1,300,000 hectares as of 1980, in contrast to the systems built from 1900 to 1972, which could serve no more than 600 thousand hectares.

Under the New Society, foreign loans have been rationalized. Short-term loans, which comprised 90 per cent of foreign borrowings under the previous administration, were converted to long term loans. These foreign loans are not made to support ordinary or current expenditures, instead are utilized exclusively for capital expenditures aimed at productive enterprise. They are therefore self-amortizing and self-regenerating.

Before the administration of the incumbent President, the credit standing of the Philippines was

notoriously low, so much so that the World Bank was not willing to lend more than \$40 million a year. During the present administration, the Philippines has become so dependable as a borrower that the World Bank has been willing to lend \$500 million at any single time, indicating the competence and stability of the Philippine government, which has never been delinquent in its payments. In the previous administration the government could hardly borrow any amount in view of its inefficient handling of borrowed funds, lack of coordinated economic planning, and

449

the hazy policies of leadership. Aggravating the situation were government threats of confiscation of private enterprise.

We have increased the direct taxes. Before 1965, only 1.5 million tax payers filed income tax returns; in 1980, 5 million tax payers filed returns. The corporate tax was also increased by 5 per cent to 40 per cent. Indirect taxes have been reduced comparatively and even suspended when the situation required. Incentives to new industry are of this class. The indirect taxes are so structured that higher taxes are imposed on luxury goods, these being the items desired by the rich or are normally available to them. The government protects the welfare of the poor by imposing very low taxes on essential items. This is evident in food items and in crude oil products — low taxes are imposed on diesel and industrial fuel, higher taxes on gasoline.

The taxes have been altogether moderate. In other countries, taxes collected constitute from 17% to 25% of the gross national product. In the Philippines, taxes are only 14 per cent of the GNP.

Also in line with our commitment to promote the welfare of the poor, we have deliberately controlled the prices of 15 essential items. We have set up the Kadiwa Centers of the Human Settlements ministry and the National Grains Authority to bring down prices even more. A massive food production and supply system has been established under a new corporation, the National Food Authority, to which the NGA has been converted with a capitalization of P5 billion.

Underlying the economy is the basic policy to uphold private enterprise. We have never confiscated or nationalized private enterprise, and there is absolutely no intention to take this socialist course. The previous administration threatened to do so, that is why investments before the present administration were discouraged from entering the Philippines. The situation created by the threat of the past administration to confiscate or nationalize private enterprise was corrected with the organization of the National Economic and Development Authority and the Board of Investments.

Martial law provided the opportunity to install the requisite institutions for coping with the energy crisis now and in the future, starting with the formulation of a comprehensive, long-term program which has been singled out by the World Bank as a suggested model for Third World countries. The program includes the mobilization and recruitment of the critical manpower to undertake the various activities of energy exploration and development which made possible commercial oil production for the first time in 1979 and made the Philippines the second largest developer of geothermal energy by 1980; fuel processing and refining, planning and construction

of the energy delivery logistics, power generation and transmission infrastructure, as well as research and development and diffusion of alternative energy forms and technologists to cover fossil fuels, biomass, energy farms, wind, wave, tidal and solar power, all the way to more energy-efficient devices, machines and appliances that should spawn rural energy systems.

The ultimate objective of our economic policy is a balanced agro-industrial economy. This is why we are shifting slowly to the 11 principal industries which are needed for the fulfillment of

450

this objectives. We can therefore hope that in time we shall cease completely to import factories and heavy machinery and will instead engineer and fabricate them. We are even now in the process of gradually manufacturing automobile, heavy truck and diesel engines.

These 11 basic industries are in the process of being set up; copper smelter, phosphate fertilizer, aluminum smelter, heavy equipment industries, integrated steel mills, petrochemical complex, diesel engine manufacturing, cement industry expansion, coconut industry rationalization, alcogas, and integrated pulp and paper.

5. The program for peace and order, which has eliminated the private armies of the Old Society, immobilized such lawless elements as the Light-a-Fire Movement, the April 6 Movement, and the Partido Nagkaisang Sosyalistang Demokrata ng Pilipinas, or SOCDEM; organized self defense units in barangays to protect them, on a self-reliant basis, from criminal elements; and developed the PC-Integrated National Police as an effective professionalized force capable of maintaining peace and order, with the possible support of the Armed Forces of the Philippines in case this becomes necessary because of actual combat.

The vigorous and unrelenting quality of the peace and order campaign enabled the government to identify 250 criminal syndicates and apprehend or neutralize their members; to seize or collect 650,000 firearms of all classes, makes and varieties, including artillery, machine guns, assault rifles, tanks, armored cars, and the latest models of sophisticated armaments; to arrest and bring to trial more than 2,000 ordinary criminals long wanted under unserved warrants.

Both factions of a subversive organization were similarly dealt a heavy blow, one faction surrendering en masse to the President before and after the proclamation of martial law, and the entire leadership of the other faction being arrested and detained to face trial.

Following negotiations led by the First Lady, Minister Imelda R. Marcos, with the President of Libya, Col. Khaddafi, and the Quadrapartite Committee of the Islamic Conference, a settlement of the secessionist movement in the South was finally reached with the Moro National Liberation Front (MNLF), represented by its Chairman, Nur Misuari, who signed with our own representatives the Tripoli Agreement in Libya on December 23, 1976. The agreement provided for the organization of autonomous regions where Muslims reside, and for a ceasefire agreement, of which two were in fact signed, one in Tripoli also on December 23, 1976 and another in Zamboanga City on January 20, 1977, between Admiral Romeo Espaldon of the Southern Command of the Armed Forces of the Philippines and Dr. Tham Manjoorsa, authorized

representative of the MNLF. A subsequent plebiscite led to the creation of two autonomous regions, Regions IX and XII, in Mindanao, where elections were held to choose the members of their respective regional assemblies or Sangguniang Pampook and members of their respective Executive Councils or Lupong Tagapagpaganap were appointed from those recommended by the said regional assemblies.

6. Educational reform, which has succeeded in reorienting the curriculum to the requirements of economic development, placing emphasis on vocational and technological skills in high school

451

and science and engineering in college; provided a suitable atmosphere for the promotion of science and research, as shown in the studies and experiments conducted by the International Rice Research Institute, the new Institute of Plant Breeding, the recently organized Institute of Microbiology which seeks to employ the new science of recombinant DNA, and the Southeast Asia Fisheries Development Council (SEAFDEC), which has done intensive work for the full development of the country's fisheries potential, including the launching of "blue farming" or farming of the seas.

Greater support has also been given for the Science High School, and scholarships are being set up for science and engineering to promote the involvement of more talented Filipinos in these fields.

7. Reform in the social services, which has produced remarkable advances in nutrition, health and family planning. With respect to nutrition, we have developed in the space of less than three years a program on both the barangay and the national levels which has become a model for many countries, as the United Nations itself has acknowledge. At the core of this program is the day care center provided for in the Presidential Decree 1567 issued in 1978, which calls for the setting up of a day care center in every barangay with at least 100 residents. As of last year, 4,000 such day care centers have been established.

In the field of social security and social insurance, administered for the benefit of the public servant and his family, substantial improvements have been made through Presidential Decree No. 1146, as amended, which expands, increases and liberalizes social security and insurance benefits of government employees at a time when global economic conditions and realities have eroded the purchasing power of pensions.

The pith of the government's effort to provide social services is, however, the human settlements program which we commenced a few years ago and is now an acknowledged model for similar efforts in other countries. Into the human settlements program we have introduced the principle, the first country to do so, that livelihood is essential to its success, and that housing units, through the most visible evidence of progress in the skyline in both town and country, are merely a part of the whole human settlements program. With livelihood as the core of this program, we are able to assure that the acquisition of a housing unit by a family is truly meaningful. To carry out this objective, we set up the source of livelihood in a human settlement or teach skills that would provide income, and in this way enable the government to recover funds spent for housing

and infrastructure and utilize these as self-regenerating funds for other human settlements.

Much of the success of the human settlements program will depend on our full and continuing compliance with the rational land use policy that we have adopted. This policy contemplates Manila as the starting point from which would then proceed the building of satellite cities in the outlying areas to prevent urban sprawl and all its attendant evils. The same policy commands us to maintain agricultural areas and desist from converting agricultural flat lands to housing and industrial sites. We are therefore now pushing for the establishment of housing and industrial sites on 18° slopes towards hillsides so as to make more rational use of the limited land space.

452

Another important element of the rational land use policy is the limitation and eventual stoppage of the exportation of raw logs and conversion to the processing of wood products. As a consequence, we have successfully kept 45 per cent of our land area of 30 million hectares as forests throughout the country. At the same time, we are even now slowly shifting from extensive to intensive agriculture and blue farming, or farming of the oceans.

Fundamental to all this is the recognition that we are principally a private enterprise society which knows the value of private initiative but which at the same time has an egalitarian base, inasmuch as the New Society is basically a revolution of the poor. By adhering to this concept, we should be able to prevent the misuse of wealth, such as by brutalizing and degrading those who don't have it.

The importance of the private sector, therefore, cannot be over-emphasized. The private sector is the cutting edge, the most active element, of change. The initiative of the private sector will thus be called upon in such crucial undertakings as zonification and the land use rationalization approved by the government.

WHEREAS, all these benefits and advances to which every man is entitled have been gained because of the order and discipline fostered by martial law, which was instituted with the full awareness that anarchy, such as existed at the time Proclamation No. 1081 was promulgated, is harmful to human rights, that it sweeps away human rights with its violence and lawlessness, making it impossible to provide the individual the tools and opportunities for his advancement and dignity or guarantees for his safety and comfort, so that the removal of anarchy becomes a condition to the protection and progress of every man;

WHEREAS, such progress wrought by reforms under conditions of peace and public order are merely a reflection of the profound transformation in the spirit of the Filipino, who as a consequence of the support and the challenge of the New Society has acquired the community spirit, a sense of belonging and a sense of pride in his community, his nation, his history and traditions, a sense of national identity that fills him with the resolve to stand his ground against any intruder;

WHEREAS, the Philippines has broadened its outlook and reached for larger horizons, in keeping with its new stature as a truly sovereign nation, discarding the parochialism of the past

in favor of a world view that encompasses every nation that would reciprocate its goodwill, including socialist countries, and performing an important role in the organization of the Association of Southeast Asian nations, in the process gaining unwonted prestige in the international community, recently enhanced by its membership in the Security Council of the United Nations;

WHEREAS, the self-respect and patriotism reawakened by the New Society have been most evident in the country's complete political independence which the national leadership vividly and unequivocally demonstrated when it obtained the formal recognition by the United States of

453

the sovereignty of the Republic of the Philippines over all military bases, including Subic Naval Base and Clark Air Base;

WHEREAS, as an essential part of the reforms accomplished by the New Society under martial law the Filipino people have given expression to their political will through free and voluntary participation in plebiscites, referenda and elections, achieved an unprecedented growth of the economy, a just and compassionate sharing of wealth, an orderly growth of human settlements and communities, a dignified and sovereign participation in international relations, and a flowering of Filipino art and culture;

WHEREAS, the Filipino people, having subdued threats to the stability of government, public order and security, are aware that the time has come to consolidate the gains attained by the nation under a state of martial law by assuming their normal political roles and shaping the national destiny within the framework of civil government and popular democracy;

WHEREAS, the experience gained by the nation under martial law in subduing threats to the stability of the government, public order and security, has enabled the Filipino people to rediscover their confidence in their ability to command the resources of national unity, patriotism, discipline and sense of common destiny;

WHEREAS, the government and the people are at the same time also aware that the public safety continues to require a degree of capability to deal adequately with elements who persist in endeavoring to overthrow the government by violent means and exploiting every opportunity to disrupt the peaceful and productive labors of the government;

NOW, THEREFORE, I, FERDINAND E. MARCOS, President/Prime Minister of the Philippines, by virtue of the powers vested in me by the Constitution, do hereby revoke Proclamation No. 1081 (Proclaiming a State of Martial Law in the Philippines) and Proclamation No. 1104 (Declaring the Continuation of Martial Law) and proclaim the termination of the state of martial law throughout the Philippines; Provided, That the call to the Armed Forces of the Philippines to prevent or suppress lawless violence, insurrection, rebellion and subversion shall continue to be in force and effect; and Provided, That in the two autonomous regions in Mindanao, upon the request of the residents therein, the suspension of the privilege of the writ of habeas corpus shall continue; and in all other places the suspension of the privilege of the writ

shall also continue with respect to persons at present detained as well as others who may hereafter be similarly detained for the crimes of insurrection or rebellion, subversion, conspiracy or proposal to commit such crimes, and for all other crimes and offenses committed by them in furtherance or on the occasion thereof, or incident thereto, or in connection therewith.

General Order No. 8 is also hereby revoked and the military tribunals created pursuant thereto are hereby dissolved upon final determination of cases pending therein which may not be transferred to the civil courts without irreparable prejudice to the state in view of the rules on double jeopardy, or other circumstances which render further prosecution of the cases difficult, if not impossible.

454

Pursuant to Article XVII, Section 3, Paragraph 2 of the Constitution, all proclamations, orders, decrees, instructions, and acts promulgated, issued or done by the incumbent President constitute part of the law of the land, and shall remain valid, legal, binding, and effective even after lifting of martial law, unless modified, revoked, or superseded by subsequent proclamations, orders, decrees, instructions, or other acts of the incumbent President, or unless expressly and explicitly modified or repealed by the regular National Assembly.

IN WITNESS WHEREOF, I have hereunto set my hand and caused the seal of the Republic of the Philippines to be affixed.

DONE in the City of Manila, this 17th day of January, in the year of Our Lord, Nineteen Hundred and Eighty-One.

(Sgd.) **Ferdinand E. Marcos**

Published in the Official Gazette, Vol. 77 No. 4 Page 441 on January 26, 1981.

Malacañang Palace. *Proclamation No. 2045, s. 1981: Proclaiming the Termination of the State of Martial*

law throughout the Philippines by Ferdinand Marcos. Manila: Official Gazette of the Philippines, 1981. <https://www.officialgazette.gov.ph/1981/01/17/proclamation-no-2045-s-1981/>.

455

Report of His Excellency Ferdinand E. Marcos President of the Philippines

To the Batasang Pambansa

Ferdinand Marcos

This presidential report is accessible at Marcos, Ferdinand E. *Presidential*

speeches, (Vol. 9). Manila: Office of the President of the Philippines, 1980.
<https://tinyurl.com/y6dgp5w>.

Catapulted to the presidency in 1965, President Ferdinand Marcos secured a second term in 1969. By virtue of Proclamation No. 1081, President Marcos placed the country under martial law on September 21, 1972, following a spate of bombings in Metro Manila. Constitutional authoritarianism supplanted the democratic institutions. On February 25, 1986, after four days of bloodless EDSA People Power Revolution, Marcos was compelled to step down and flee with his family to Hawaii.

In his report in 1980 to the Batasang Pambansa on the amendments to the Military Bases Agreement, which was forged with the United States on March 14, 1947, President Marcos first noted that the “attainment of sovereignty, the achievement of security, and full economic development and modernization,” which constituted the “objectives of domestic and foreign policies,” had been attained by amending the agreement. Marcos proceeded to briefly discuss the concatenation of events taking place in the world, which presented difficulties and “opportunities for peace, security and national development in our immediate regions.” After examining “the problem of military bases” in the country at the start of the twentieth century, Marcos presented the amendments to the agreement namely: (1) Recognition of Philippine sovereignty over the bases by the United States; (2) Designation of a Philippine commander at each base; (3) Commitment of the Philippine government to the unimpeded US “military operations”; (4) Reduction of “base areas” under American control; (5) Philippine “takeover” of the “perimeter security” of the bases; and (6) “thorough and complete review and reassessment” of the agreement every five years. President Marcos reported that the United States President Jimmy Carter pledged to provide \$500 million in military assistance for a period of five years.

The Final Liberation

I THOUGHT IT wise and proper that on this the first day of the resumption of our session after the Christmas recess, I come to you to render a full report and through you, to the people of the

456

Philippines, on the latest amendments to the Military Bases Agreement with the United States originally entered into by our country on March 14, 1947.

A clear sense of history should underline the significance of this development as it has taken first of all an entire generation to bring this about. More than that, however, the question of foreign military bases in our land has been a major thing in our struggles and in our history as a people,

particularly in the evolution of our security and foreign policies. They have always constituted the unfinished business of our liberation, of our independence, the loose thread in our continuing struggle for complete emancipation.

Every nation, most especially a developing nation, or the colonized nations of the world have three primary objectives, and those are: the attainment of sovereignty, the achievement of security, and full economic development and modernization. I have always maintained that these are likewise the three primary objectives of our foreign and domestic policies.

I submit to you that the first of these objectives has been achieved by the Amendment to the Military Bases Agreement of 1947, and that the last two objectives have been secured by such amendment. It has been a long and arduous, often bitter and frustrating struggle, which is the case in any negotiations where equality cannot be assumed. From the beginning, historical circumstances did not favor us with the odds, for as everyone knows, that matter of foreign military bases in our homeland were with us since the proclamation of our Independence on June 12, 1898, an independence that was all but won by the Philippine Revolution, the first revolution in this part of the world, which established the Republic.

I wish to report to you and to our people that in the last few days, months, and perhaps even years, and during this period especially when the Batasang Pambansa was recessed, a train of events took place in our country and in the world which once again underscored the challenge to and the opportunities for peace, security and national development in our immediate regions.

The fact that these events came too close to one another, and so near our own country appears to have increased their impact upon us, and there is a feeling across the nation of searching and inquiry into the meaning of these events.

My report will review these events and state for our nation my assessment of how and where we stand today — in the midst of all these disturbing developments.

In the first few days of 1979, the following events—all of international importance and magnitude — occurred:

On the first day of January 1979, the United States and the People's Republic of China formally established diplomatic relations, ending 30 years of abnormal relations with each other. The United States also formally severed relations with Taiwan, thereby bringing to a close a historic association upon which had rested a major pillar of American policy in Asia. It is of course known to everyone that Taiwan is 90 miles north of the northernmost island of the Philippines.

457

A kind of euphoria seemed to sweep the United States as a result of this normalization. In our part of the world, the calculation has to do with how such normalization of relations enhanced the prospects of peace and trade, given China's position in this part of the world. Previous to this, Japan and China had entered into a historic treaty of friendship, opening to Japan one more vast and hitherto untapped market. On the other side of Asia, Vietnam had earlier forged a treaty with the Soviet Union, a provision of which reads very much like a mutual defense pact; it says that in

the event of any threat arising to any of the parties, the two parties shall enter into mutual consultations on how to remove such threat.

At the same time that the nations in Southeast Asia, as elsewhere, were trying to analyze the meaning and portents of normal relations between Peking and Washington, the members of the Organization of Petroleum Exporting Countries (OPEC) announced new increases in the price of oil. Scheduled to reach 14.5 percent over last year's prices by the end of 1979, these increases added yet a new wrinkle to the economic prospects or lack of prospects in 1979—an element that further complicates an already complicated and confused situation, owing to the not completely liquidated inflationary pressures of 1978.

Last week we received as guest the Foreign Minister of the Somali Democratic Republic, His Excellency Dr. Abdirahman Jama Barre. He arrived to formally inform our government and the governments of ASEAN that because of the armed intervention of foreign troops allegedly in support of Ethiopian armed forces, Somali has been forced to abandon the Ogaden Desert where the Somali s and the Ethiopians have been fighting a long grueling war.

In Iran, the world's second biggest supplier of crude oil, the long reign of the Shah finally came under siege, and at the beginning of the year, a new government was formed and prepared to take over, as the Shah came under increasing pressure to leave the peacock throne.

On January 7, 1979, the flag of the Kampuchea United Front for National Salvation was hoisted over the central temple of Phnom Penh, signaling the takeover by the Front of the Kampuchean capital and ending a 45-month-old communist regime that had itself taken power by violent means towards the end of the Vietnam war.

In addition to this, I would like to go back to 1978 on the occasion of the visit to Manila of Deputy Prime Minister and Foreign Minister Nguyen Duy Trinh of Vietnam. The visit was at my instance and with the participation of our Foreign Minister Romulo. The two prime ministers came to an agreement, and signed the declaration that Vietnam and the Philippines would settle any misunderstanding and conflicts, especially over oil boundaries in the South China Sea, peaceably and in a spirit of cooperation and friendship.

On the occasion of my state visit to the People's Republic of China in 1975 to establish diplomatic relations with that big nation, an understanding was entered into with the then leadership, Chairman Mao Tse-tung as well as premier Chou En-lai, who were still alive. The understanding was also entered into with Senior Deputy Premier Teng Hsiao-ping to the effect that any conflict between the Philippines and the People's Republic of China as to sovereignty

458

over any of the questioned islands in the South China Sea would be decided through normal diplomatic procedures.

It should be remembered, however, that before the withdrawal of United States forces from Vietnam, there was reported the occupation by the People's Republic of China of the Paracels. I mention these developments to point out that the conclusion of the re-negotiation of our

agreements with the United States on military bases took place amid an unstable, unpredictable international situation.

At exactly the same time that power was changing hands in Kampuchea, and new fears were being expressed about the peace and stability in Southeast Asia, the Philippines and the United States were exchanging notes on a six-point amendment to the Military Bases Agreement of 1947, which has the effect of ending dramatically thorny issues that had long troubled the agreement and the relations between the two countries.

These events, taken separately or together, have altered the world of our concerns, and it is in the midst of these developments that our people are asking to be informed of the dangers and prospects that they now face.

Have these developments made our part of the world more or less dangerous to live in? Have they made our country more vulnerable to insurgency from within, or attack from outside? Have they increased, or lessened our ability to cope?

These are just some of the questions.

To answer any of them, we must begin by remembering that the world in which we live is no longer the simple, uncomplicated black and white world of the fifties or the sixties. It has changed. Where before our foreign policy was shaped mainly by a war psychology that saw the United States and the Soviet Union as inevitably coming upon each other's throat, today, in spite of the numerous brushfires that have set aflame certain countries in Asia and Africa, we have come to expect greater progress in peaceful coexistence and *detente* and the peaceful resolution of conflicts. We are therefore able to look at conflicts, even when the protagonists are reported to be getting support from some of the superpowers, objectively, without being panicked into belief that the final confrontation of superpowers is at hand. Thus we can distinguish the threats that confront our neighbors and those that confront us, and we can distinguish real national opportunities even when they are born of the womb of crisis.

Perhaps we should go back a few more years and look into the problem of military bases in the Philippines at the beginning of the century. For it has as a background complicated twists and turns that started with the arrival of Admiral Dewey in Manila Bay in 1898 and the abortive attempt of Aguinaldo to win recognition for the first Philippine Republic through his ambassadors. The first ambassador was Agoncillo and his first foreign minister Mabini. Receiving arms and encouragement from the American officers, he resumed the revolution against Spain in 1898 notwithstanding the Pact of Biak-na-Bato, declared the independence of

459

the Philippines, and established the Republic of the Philippines on June 12, 1898, only to declare war on the United States when he was convinced that the promise of independence would not be fulfilled.

After the capture of Aguinaldo on March 1901 and the establishment of a civil government in accordance with the Philippine Bill of 1902, the American occupation of the Philippines was

formalized under the sometimes declared ambiguous trusteeship to prepare the Filipinos for self government and the implied promise of political emancipation. The entire territory of the Philippines, as described in the Treaty of Paris of December 30, 1898, was occupied and placed at the disposal of the American military authorities. The situation continued even after the approval by the United States Congress of subsequent fundamental laws, especially the Jones Law of 1916 which created the Philippine Senate with 24 elective members and two appointive members from the non-Christian population of the Philippines, and with the House of Representatives composed of 84 elected members and nine appointive members representing the non-Christian tribes. The new Senate replaced the appointive Philippine Commission. The system of representation was augmented by the appointment of two Filipino resident commissioners who represented the Philippines in the United States House of Representatives with the right to debate but not the right to vote. The most well-known resident commissioners, of course, were President Manuel Luis Quezon, and later on, during the war before the proclamation of independence, our own colleague, Minister Carlos P. Romulo. I do not know what it means to have the right to debate but not the right to vote. But I gather from one of our friends in the American House of Representatives that with the representatives we had in the United States, they would have preferred to have given us the right to vote and not the right to talk.

During the entire period of 1902 to 1934, the latter year marking the passage of the Hare-Hawes Cutting Law — the law that would grant independence to the Philippines after a period of 10 years of Commonwealth — the problem of military alliances, or foreign policy for that matter, security, military bases and arms for the Philippines, or for that matter, again, that of the Armed Forces of the Philippines, did not attract either public or private debate, for the primary problem in Filipino minds was political emancipation.

The question of military bases however was brought to the public mind by the “pro” and “anti” campaign over the Hare-Hawes Cutting Act in 1934, the political campaign which arose from the fight for supremacy between the partnership of Osmeña and Roxas on the one side — for this, too, had succeeded in obtaining the Hare-Hawes-Cutting Act from the American Congress — and on the other side, Senate President Manuel Luis Quezon, who opposed the ratification of the Hare-Hawes-Cutting Law ostensibly because of its provision authorizing the establishment of American military bases in the Philippines even after independence.

The Filipino people rejected the Hare-Hawes-Cutting Act, and subsequently, Senate President Manuel Luis Quezon succeeded in obtaining the approval by the United States Congress of the Tydings-McDuffie Law which had the same provisions as the Hare-Hawes-Cutting Act, except that it provided among others that the President of the United States, and I quote, “was

460

authorized to enter into negotiations with foreign powers with the view of concluding a treaty for the perpetual neutralization of the Philippines even when Philippine independence would have been achieved.”

President Quezon was quoted later in his own book entitled *“The Good Fight”* as saying, and I

quote him: “My main objection however was to the provision of the law that called for the retention of military and naval establishments by the United States after the Philippine Republic should have been proclaimed I did not object to the provision authorizing the retention of naval stations so long as this was made dependent upon the concept of the Philippines Republic. But I did strenuously and definitely oppose the retention of military establishments otherwise, for it destroyed the very essence of independent existence for the Philippines.”

But after President Quezon was compelled to abandon the Philippines and depart from Corregidor in the middle of the war and during the fighting in Bataan and Corregidor, and after establishing the refugee government in Washington, Joint Resolution No. 93 of the United States Congress was approved by the American President on June 4, 1944, and it authorized the United States President, and I quote again, “by such means as he finds appropriate to withdraw and to acquire and to retain such bases and necessary appurtenances to such bases and incident thereto in addition to any provided for by the act of March 24, 1934.” This resolution amended the Tydings-McDuffie Law and authorized the establishment of military bases in the Philippines.

The Japanese had by then occupied the Philippines of course, and the American policy was for giving priority to the European theater of war. President Quezon acceded to the resolution on the establishment of military bases in the Philippines. After the war, by the Treaty of General Relations between the Republic of the Philippines and the United States of America on July 4, 1946— this treaty is generally referred to as the treaty that granted independence to the Philippines — the United States agreed, and I quote, “to withdraw and surrender and thus, hereby, withdraw and surrender all rights of possession, supervision, jurisdiction, control or sovereignty existing and exercised by the United States in and over the territory and people of the Philippine Islands, except the use of such bases and the rights incident thereto as the United States of America by agreement of the Republic of the Philippines may deem necessary to retain for the mutual protection of the Republic of the Philippines and of the United States.”

In addition to this, the Philippines amended its Constitution to establish what is commonly referred to as “parity rights” to American citizens — parity rights over the patrimony of the nation.

But let us listen to President Roxas explaining the reason for all these actuations. He said, and I quote him: “Against the background of destruction, we acquired our sovereignty. We received our national heritage. We must perform more miracles to bring prosperity to this our land. To succeed in this imperative, we have the assistance and support of the United States. Without that assurance, our prospects would be bleak and dimmed “

461

According to President Roxas, the granting of parity amendment, as well as the military bases agreement, was one of the several conditions for the approval of the War Damage Act and the trade agreement which the Philippines seriously needed at the time. On March 14, 1947, the Military Bases Agreement was entered into by the two countries. It may be stated in passing that the parity amendment of the Constitution was allowed to lapse and has not been renewed. It terminated at midnight of July 3, 1974, and this administration has refused to extend it further.

In addition to the Military Bases Agreement, the Philippines entered into the Mutual Defense Pact of August 30, 1951, immediately after our sending expeditionary troops, or rather, police action troops to Korea, and the Military Assistance Agreement of March 21, 1947 or almost simultaneously with the Military Bases Agreement. Of course the Military Assistance Agreement of March 21, 1947, was amended on June 26, 1953.

This new capability to judge and act for ourselves is an achievement of the last six years. It was during that period when we finally embarked on a full-scale diversification of relations with the socialist countries, with ASEAN, Asia, Africa and the Third World. Before this period, we had what is often referred to as a dependent foreign policy. It was during this period when we proclaimed the liberation of that policy. It was also during this period when others began to take us seriously for the initiatives we took for ourselves, rather than in the name of our allies. It was during this period, finally when we made the most significant effort to reexamine and readjust our longest close association with any other country — our relations with the United States.

As President, it was my privilege to preside over this effort. In 1966, on my state visit to the United States, we entered into a landmark amendment to the 1947 bases agreement by cutting down to 25 years the unexpired portion of the original 99-year duration of the military bases. Subsequent thereto, certain portions of the bases were transferred to the Philippine Government. These included Sangley Point, Mactan Air Base, portions of Clark and Camp John Hay, as well as weather observation installations and early warning systems.

Renegotiation and readjustment of the terms of the agreement gained new impetus after the resolution of the Vietnam war, when it appeared to many that American policy was undergoing a sea-change in Asia, and questions were being asked, even within the United States, about the appropriateness of American commitments in Asia and the Pacific. This was particularly heightened by our anxiety about the lack of an automatic retaliation clause in our Mutual Defense Pact, in case of armed attack on the Philippines by another power, and an unclear definition of what areas of our territory would be covered by American protection in case of attack. Added to this was the increasing disquiet of some sectors of our citizenry who have through the years questioned the need for the bases, and the wisdom of the treaties that bind Philippine defense with the United States.

We had three alternatives: 1) to work for the abrogation of the 1947 Military Bases Agreement, with all its consequences on the balance of power in western Pacific; 2) to allow the continued deadlock on the negotiations and thus permit the continued operation of the bases by the United States, without any basic change in the terms which we had long described as onerous to our

462

country and without relief from the grievances and irritants that had troubled Philippine American relations; and 3) to attain the best possible terms while allowing the United States to operate the bases or parts thereof, giving special stress to their continued existence in the country will serve not only American but also Philippine interests.

In considering which alternative to pursue, it was my firm belief that three objectives had to be met, namely: sovereignty, security, and economic modernization and development.

The first alternative, abrogation of the Military Bases Agreement, presupposes the existence of a mechanism in the original agreement for unilateral abrogation on the part of either of the parties to the agreement. I would like to call attention to this point because during the entire debate, nobody ever raised it. But there is no mechanism provided for in the 1947 Military Bases Agreement for the abrogation or rescission of the treaty by either of the parties. There has been no amendment either providing for such abrogation.

If one party therefore attempts to unilaterally abrogate the agreement without such mechanism, the other party if it so wishes could under international law insist on the integrity of the agreement and do what it can do to enforce its rights. Specifically, were we to abrogate the military bases unilaterally, in legal terms and legal contemplation, the United States could maintain the same position that it held with respect to its Guantanamo base in Cuba: it refused to move out. You will all remember of course that Fidel Castro wanted to close down the base because it was a continued reminder of American presence on Cuban soil. But because the Cuban-U.S. agreement, which is similar to our 1947 agreement, contained no provision for unilateral termination, the United States could not be budged from the base, and it remains in control of Guantanamo up to now.

On, the other hand, the second alternative of allowing the continued operation of the agreement without any basic changes in the terms, offered no relief for the many grievances and irritants that have long troubled the amity or R.P. – U.S. ties. Simple common sense and concern for the national interest at the very least required that the Philippine Government exert every effort to remove those elements of the agreement that we found onerous. They required us to relieve those obligations and provisions that impugn our national sovereignty. Most of all, they required us to seek changes in the agreement without sacrificing its more salutary aspects.

Thus, the only acceptable alternative was the amendment of the 1947 Military Bases Agreement, with a view to ending its onerous provisions and to introducing new provisions that would fully recognize Philippine sovereignty, enhance national security, and promote national economic development.

This approach became the basis for the position we presented in the negotiations, both at the start of the talks and in the ensuing deadlocks and delays that developed.

My colleagues will well remember that the negotiations began almost immediately after my assumption of the Presidency in 1965, then gathered momentum three years ago, following the

463

joint communique of President Gerald Ford and myself on December 7, 1975, which set “negotiations on the subject of the United States use of Philippine military bases.”

Needless to say, the participation by the members of the Philippine panel has been dedicated and

patriotic. I refer most particularly, of course, to the Minister of Foreign Affairs, the Minister of Defense, the Honorable Juan Ponce Enrile, the Solicitor General, the Minister of Justice, and in the last few meetings, also the Minister of the Budget, the Minister of Finance, former Vice President Emmanuel Pelaez who has been most informative and who guided us in the previous negotiations which frustratingly had negative results. And from the military we organized the military panel which was headed by our Chief of Staff, General Romeo Espino.

To summarize, the substance of the new amendments are found principally in four documents. These four documents are: the letter of President Carter to me which is dated January 4, 1979; the letter of U.S. State Secretary Cyrus Vance to the Minister of Foreign Affairs; the exchange of notes; the letter of U.S. Ambassador Murphy to Minister Romulo; and of course, the document entitled. The Arrangements Pertaining to the Base Commander and the United States Facilities Commander.”

Now let me summarize the contents of these documents:

First, the bases which are the subject of the agreement are to be known as Philippine Military Bases over which Philippine sovereignty extends, and that only the Philippine flag shall be flown singly at the bases;

Second, that each base shall be under the command of a Philippine base commander;

Third, that the-United States shall have the use of certain facilities and areas within the bases, and shall be assured unhampered military operations involving its forces in the Philippines;

Fourth, that the base areas shall be reduced from their erstwhile dimensions; portions of the base areas will be developed by the Philippine Government for non-military purposes, and in this development the United States of America has shown interest and intends to participate.

Fifth, that the Philippine Government will provide for the perimeter security. The proper term will be “will take over the perimeter security of the bases”; and

Sixth, that every fifth year from the date of signing of the Amendment, and until the termination of the Military Bases Agreement, there shall be a thorough and complete review and reassessment of the agreement to ensure that it continues to serve the mutual interest of both parties.

From the above amendments, our people will note that full recognition is given, at last, to Philippine sovereignty over the bases, removing all the ambiguities and doubts that once attended this question. Perhaps, the members of Congress will remember the Bronell opinion or